

26NNCV02869 26NNCV02869

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-18

Motion: MOTION TO DEEM REQUEST FOR ADMISSIONS ADMITTED

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Case Number: 26NNCV02869 Hearing Date: September 18, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

UNITED FINANCIAL CASUALTY COMPANY,

Plaintiff(s),

vs.

ARSAMAK
OZIEV, et al.,

Defendant(s).

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CASE NO.: 26NNCV02869

[TENTATIVE]

ORDER RE: MOTION TO DEEM REQUEST FOR ADMISSIONS ADMITTED

Dept.

3

8:30

a.m.

September

18, 2026

United Financial Casualty Company ("UFCC")

is the respondent in an uninsured motorist insurance arbitration initiated by claimants Arsamak Oziev, Iza Ozieva, Amalia Ozieva, Adeliya Ozieva, Salm Ozieva, Aila Ozieva, and Safina Ozieva (collectively, "Claimants").

The superior court has exclusive jurisdiction over discovery disputes in uninsured motorist arbitrations. (Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 927.) Due to the superior court's exclusive jurisdiction over discovery disputes by statute, service of process is not required for the Court to acquire jurisdiction and discovery motions can be served in an ordinary manner. (Id., pp. 927-928.) Here, UFCC's motion was served on opposing counsel by mail.

Where a party fails to timely respond

to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

On October 27, 2025, UFCC served a set of requests for admission on each of the Ozieva Claimants. (Hill Decl., ¶¶ 3-9.) The motion is unopposed and it is undisputed that no responses have been served by any of the Ozieva Claimants. It also does not appear that any of the Ozieva Claimants have served substantially compliant responses before the hearing. Accordingly, the motion to deem admitted is GRANTED.

UFCC to give notice.

Dated
this 18th
day of September 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.